IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No. 102

CP (CAA) No. 44/Chd/Hry/2023
(2nd Motion)

IN THE MATTER OF:
DLF City Centre Ltd. ... Transferor Company

And

DLF Cyber City Developers Ltd. ... Transferee Company

Under Section: 230-232 CA 2013

Order delivered on 04.10.2024

CORAM:
SHRI. UMESH KUMAR SHUKLA, HON'BLE MEMBER (T)
SHRI. HARNAM SINGH THAKUR, HON'BLE MEMBER (J)

PRESENT:

For the Petitioner Companies	**:**	Dr. U.K. Chaudhary, Senior Advocate with Mr. Pulkit Goyal, Ms. Manisha Chaudhary, Mr. Mansumyer Singh and Ms. Manisha Sharma, Advocates
For the Income Tax Department	**:**	Mr. Varun Issar, Senior Standing Counsel
For the RD	**:**	Mr. Vineet Khatri, Company Prosecutor
For the Official Liquidator	**:**	Mr. Edward Augustine George, Advocate

ORDER

. Reply to the report of Income Tax Department has been filed vide diary No.03472/9 dated 06.08.2024. Reply to the report of Official Liquidator has been filed vide diary No.03472/10 dated 06.08.2024. Reply to the report of Regional Director has been filed vide diary No.03472/11

dated 06.08.2024. Compliance affidavit on behalf of the applicant companies has been filed vide diary No.03472/12 dated 09.08.2024. Affidavit on behalf of the applicant companies has been filed vide diary No.03472/13 dated 19.09.2024. All are taken on record.

It was noted that as per the directions of this Tribunal, vide its order dated 01.03.2024 notices to the Government Authorities to whom any statutory dues or development charges as per the books of account of petitioner companies are payable has not been issued. Further, notice may also be required to be issued to SEBI in terms of Section 230(5) of the Companies Act as some of the petitioner companies are listed. Learned counsel for the petitioner companies has sought date for clarification on the above issues. Let the same be done within two weeks.

It is pointed out by Mr. Varun Issar, learned Senior Standing Counsel, for the Income Tax Department that Respondent No.6 Company has outstanding dues for sum of Rs.38,21,840/- for the assessment year 2022-23, which should be paid before approval of Scheme. It is stated by learned counsel for the petitioner companies that although the reply has been filed but on perusal, it was noted that the submission of IT Department has not correctly been mentioned in that. The counsel for the petitioner companies prayed for time to file affidavit with correct facts.

Mr. Vineet Khatri, learned Company Prosecutor, for the RD is directed to seek clear instructions from the RD that whether they are satisfied with the reply filed by the petitioner companies or not, failing which, RD may be directed to be present either physically or through hybrid mode on the next date of hearing.

Mamta
04.10.2024.

It is stated by Mr. Edward Augustine George, learned counsel for the Official Liquidator that after gone through the response, he has no objection to the scheme. Let the matter be listed on 08.11.2024 Higher on Board.

Sd/- Sd/-

(UMESH KUMAR SHUKLA)
HON'BLE MEMBER (T)

(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

Mamta
04.10.2024.